

Warsaw, March 19, 2025

Decision

DS.523.4750.2023

Based on Article 104 § 1 and Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2024, item 572) in connection with Article 7 § 1 and § 2, Article 102 § 1 point 1 and § 3 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) in connection with Article 6 § 1, Article 9 § 1 and 2, Article 58 § 2 letter i, Article 83 § 1 and 2, and Article 83 § 5 letter a of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 05.04.2016, p. 1, OJ EU L 127 of 23.05.2018, p. 2, and OJ EU L 74 of 04.03.2021, p. 35), after conducting administrative proceedings regarding the complaint of Ms. X.Y., residing at ul. (...), concerning irregularities in the processing of her personal data by the Chief Commander of Police based in Warsaw (02-624) at ul. Puławska 148/150, consisting of the disclosure during a press conference on (...) of personal data of Ms. X.Y. in the scope of: information covered by medical confidentiality, including information about:

- health status,
- treatment (...), including that she suffers from (...),
- the then-current mental health status of Ms. X.Y., i.e., including emotional state, alleged (...), alleged (...);

information about the current physical health status of Ms. X.Y., including, among others, information about the course of (...);

information about the breakdown of Ms. X.Y.'s relationship, and consequently about her sexual orientation;

information about the place of residence of Ms. X.Y., the type of residential building including her apartment and the legal title to the apartment in which she resided;

The President of the Personal Data Protection Office

1) stating that the Chief Commander of Police based in Warsaw (02-624) at ul. Puławska 148/150 violated the provisions of:

a) Article 6 § 1 of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), by disclosing without legal basis during a press conference on (...) personal data of Ms. X.Y., residing at ul. (...), in the scope of information about the breakdown of her relationship, place of residence, type of residential building including her apartment and the legal title to the apartment in which she resided;

b) Article 9 § 1 of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), by disclosing without legal basis during a press conference on (...) personal data of Ms. X.Y. in the scope of information about her treatment (...), that she suffers from (...), the place of treatment (...), and information about her emotional state - in the scope of information about (...) and statements “(...)” and “(...)”;

imposing on the Chief Commander of Police an administrative fine of 75,000 PLN (in words: seventy-five thousand zlotys) for the above violation;

2) in the remaining scope, terminating the proceedings.

Justification

On (...) the complaint of Ms. X.Y., residing at ul. (...) (hereinafter referred to as the Complainant), represented by Ms. (...) Q.A., regarding irregularities in the processing of her personal data by the District Prosecutor's Office in Ż. and by the Chief Commander of Police based in Warsaw (02-624) at ul. Puławska 148/150 (hereinafter referred to as the Commander), consisting of the disclosure of personal data of the Complainant during a press conference on (...) was submitted to the President of

the Personal Data Protection Office (hereinafter referred to as the President of UODO).

In the content of the complaint, the representative of the Complainant indicated that quote: "I. I am filing a complaint against (...) the Chief Commander of Police (...) in connection with: 1) violation of personal data protection within the meaning of the provisions of the Regulation, consisting of the unauthorized disclosure (dissemination) of personal data of the Complainant, including special categories of personal data, in the content of the press conference with the participation of the Chief Commander of Police on (...) ; 2) failure to notify the President of the Personal Data Protection Office (hereinafter: the "Authority") of the violation of personal data protection and failure to inform the Complainant about the violation of personal data protection by the complained entities, despite the violation of the rights and freedoms of the Complainant: II. I accuse the complained entities of violating Article 5 § 1 point lit. a, c and f, Article 6, Article 9 § 1 and 2, Article 32 § 1, Article 33 § 1 and Article 34 § 1 of the Regulation; III. I request the determination of the violation by the complained entities of the provisions of the Regulation, which simultaneously...

justifying the imposition of a monetary penalty of 100,000 Polish zlotys on each of the Complainants separately;

IV. pursuant to Article 58(2)(g) of the Regulation, I demand the removal of personal data processed unlawfully, including taking actions to inform the administrators processing this personal data that the person to whom the data pertains requests that these administrators delete any links to this data, copies of this personal data, or their replications.

The Complainant's representative stated that: "1. The materials and statements broadcast during the Press Conference contained information covered by medical confidentiality, including the health status of the Complainant. Information about the treatment of the Complainant was disclosed; about the fact that she suffers from (...) (which, given that the information was provided by a doctor (...), obviously suggests (...); about the alleged, at that time, mental health status of the Complainant, i.e., among other things, about her emotional state, about the alleged (...) and, as can be inferred from the Operator's statements during the first conversation, about the alleged (...). Selective anonymization of the conversation allowed the public to engage in unauthorized speculation about the nature and extent of the Complainant's (...) 2. Information about the current physical health status of the Complainant was also disclosed, including, among other things, information about the course of (...) at the time of the events of (...) 3. Furthermore, information regarding the private life of the Complainant was disclosed (the presumed breakdown of a relationship), and consequently about her sexual orientation. 4. The disclosure of the Complainant's personal data, including special categories of personal data, during the Press Conference violated the principles regarding the processing of personal data, particularly the principle of lawfulness of personal data processing (Article 5(1)(a), Article 6 of the Regulation) (...) 6. It is worth noting that the disclosure of information about the Complainant also violated the principle of data minimization (Article 5(1)(c) of the Regulation) and the principle of integrity and confidentiality (Article 5(1)(f) of the Regulation). 7. Moreover, none of the conditions justifying the lawfulness of processing the Complainant's data were met (...) 9. The above considerations also lead to the conclusion that contrary to the requirements of Article 32(1) of the Regulation, the accused Entities did not implement appropriate technical and organizational measures to ensure a level of security of data processing that corresponds to the risk of infringement of the rights or freedoms of the Complainant. 10. Furthermore, there was a violation of Article 33(1) and Article 34(1) of the Regulation due to the failure of the Accused Entities to report the personal data breach to the Authority and to inform the Complainant about the breach, despite the evident high risk of infringement of the rights or freedoms of the Complainant, given the circumstances of the case. 11. Assuming that the purpose of the Press Conference was theoretically to respond to allegations made against police officers in journalistic material or to inform the public about actions taken in the Complainant's case, the disclosure of the information mentioned above was not proportionate to the intended purpose in any respect nor did it have any substantive justification. The actual purpose of publishing the aforementioned data was to humiliate the Complainant, discredit her in the eyes of the public, and impose a public penalty on her for her statements about the abuses of police officers. This constituted a violation of the Complainant's right to the protection of personal data, to respect for

private and family life, and the prohibition of degrading treatment or punishment."

The Complainant's representative also stated that: "The Press Conference or its fragments were published and commented on by numerous nationwide media. The entirety of the recordings broadcast during the Press Conference, as well as the remaining part of the Press Conference, is available on the Internet, including, among others, on the portal E. (...) and on the website (...)."

By letter dated (...) (page 17 of the case file), the President of the UODO, based on Article 66 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2024, item 572; hereinafter: Kpa), informed the Complainant's representative, among other things, that:

- the submission concerns several matters to be handled by different authorities;
- the President of the UODO will consider the matter concerning the Complainant's complaint about irregularities in the processing of her personal data by the Chief Police Headquarters.

During the explanatory proceedings conducted in this case, the President of the UODO established the following: Information concerning the Complainant was obtained by the Police in connection with a telephone emergency call to the emergency number 112 made by the Complainant's doctor on (...) , during which he informed that the Complainant was in a state indicating the possibility of (...) due to her poor mental state. The report was redirected to the duty officer of the City Police Headquarters in Ż. and was registered in A. (...) (hereinafter referred to as A.). Information concerning the Complainant was also obtained by police officers in connection with actions taken during their intervention on (...) in relation to the incident involving the Complainant, and subsequently at (...) Hospital (...) in Ż. and at (...) Hospital (...) in Ż. Information, including personal data,

w A. The Police processes data for the purpose of fulfilling statutory tasks, particularly those specified in Article 1, paragraph 2 of the Act of April 6, 1990, on the Police (hereinafter referred to as the Police Act) based on Article 20, paragraphs 1-1d and 2b of the Police Act (evidence: pages 8-9 of the explanations of the Commander dated November 30, 2023 – pages 37 verte-38 of the case file).

The recordings of conversations concerning the Complainant with the emergency number 112 and the duty officer of the Municipal Police Headquarters in Ż., as well as information related to the actions taken by police officers regarding the report concerning the Complainant, were obtained by a team of inspectors from (...) of the Chief Police Headquarters, who, at the request of the Commander, conducted control activities to establish facts regarding the actions taken against the Complainant on (...) by police officers on ul. (...) in Ż. and at (...) Hospital (...) in Ż. and at Hospital (...) in Ż. The aforementioned control activities were conducted at the request of the Commander in accordance with § 7 point 4 and § 11 of the Order No. 30 of the Commander dated December 16, 2013, regarding the functioning of the hierarchical organization in the Police (Official Journal of the Chief Police Headquarters item 99 as amended) (evidence: page 9 of the explanations of the Commander dated November 30, 2023 – page 38 of the case file).

(...) On (...) the television station Ń. aired a news program "(...)" featuring the Complainant, which concerned the incident from (...) On the aforementioned material is available on the website at (...), as part of the published article dated (...) titled: "(...)". In this video material, the first name of the Complainant is mentioned, but her surname is not indicated, her figure is visible, her face is shown, and her voice can be heard (evidence: official note dated June 26, 2024, regarding the viewing of the aforementioned material along with attachments - pages 46-52 of the case file).

(...) On (...) the Complainant appeared on the television station Ó. in the program "(...)". Video materials from this appearance are available on the website at (...), as part of the published article dated (...) titled: "(...)". In these video materials, the first name of the Complainant is provided, but her surname is not mentioned, her face is visible, and her voice can be heard (evidence: official note dated June 27, 2024, regarding the viewing of the aforementioned materials along with attachments - pages 53-60 of the case file).

10. In connection with the incident involving the Complainant on (...) the District Prosecutor's Office (...) in Ż. conducted an investigation under reference number (...) regarding the crime under Article (...) of the Act of June 6, 1997, Penal Code (Journal of Laws of 2022, item 1138 as amended; hereinafter

referred to as the Penal Code), and regarding the crime under Article (...) of the Penal Code (evidence: page 10 of the explanations of the Commander dated November 30, 2023 – page 38 verte of the case file). The conduct of this investigation was transferred to the District Prosecutor's Office in Ż., where the case was registered under reference number (...) (evidence: page 7 of the explanations of the Commander dated August 13, 2024 – page 101 of the case file).

11. The Head of (...) of the Provincial Police Headquarters in Ż. by letter dated (...) requested the District Prosecutor's Office in Ż. to grant permission for the release of recordings from the reported intervention under emergency number 112 undertaken on (...) by officers of the Police Station (...) in Ż. against the Complainant, as well as to grant permission for their publication in the media (evidence: page 10 of the explanations of the Commander dated November 30, 2023 – page 38 verte of the case file and a copy of the aforementioned letter attached to the explanations of the Commander dated August 13, 2024 – page 103 of the case file). In response, the District Prosecutor in Ż. in a letter dated (...) stated, "(...) I consent to their publication in the media, excluding those pieces of information that are subject to personal data protection, particularly data identifying the doctor and the patient, as well as any information covered by the secrecy subject to the regime of the Act of December 5, 1994, on the professions of doctor and dentist (...) and the Act of August 19, 1994, on the protection of mental health (...)" (evidence: a copy of the letter from the District Prosecutor in Ż. dated (...) attached to the explanations of the Commander dated November 30, 2023 – page 42 of the case file).

12. On (...) a press conference was held at the Chief Police Headquarters with the participation of the Chief Commander of the Police. During this press conference, recordings concerning the Complainant's conversations with the emergency number 112 and the duty officer of the Municipal Police Headquarters in Ż. were played, with removed fragments of these conversations (evidence: explanations of the Commander dated November 30, 2023, official note dated July 3, 2024, regarding the viewing of the recording from the press conference – pages 61-62 of the case file). These recordings originated from the findings of (...) of the Chief Police Headquarters (evidence: page 10 of the explanations of the Commander dated November 30, 2023 – page 38 verte of the case file), from A. (page 5 of the explanations of the Commander dated November 30, 2023 - page 36 of the case file). In the first part of his speech during the aforementioned conference, the Commander, among other things:

- pointed out that "(...)";
- informed that the information he would present is quoted as "(...)";
- indicated that what would be discussed is quoted as "(...)"

Subsequently, a recording of a phone call with the dispatcher of the Provincial Emergency Notification Center from (...) at (...) was played, containing, among other things:

Caller: "(...) [sound obscured] (...)"

Operator: "(...)"

Caller: "(...) [sound obscured]"

Operator: "(...)"

Caller: "(...)"

Operator: "[sound obscured] (...)"

Caller: "[sound obscured], (...) [sound obscured] (...)"

Operator: "(...)"

Caller: "(...) [sound obscured], (...)"

Operator: „(...)”

Caller: „(...) [sound obscured]"

Operator: „(...) [sound obscured], (...) [sound obscured]"

(...)

Caller: „(...) [sound obscured], (...)"

Operator: „(...) [unintelligible] (...)"

Operator: „(...)”

Caller: „(...)”

(...)

Operator: „(...) [sound obscured] (...)”

Caller: „(...)”

(...).

After the above recording was completed, the Commander informed, among other things, about the actions taken by the dispatcher of the Emergency Notification Center and the Police in connection with the report recorded in this recording. At the end of his statement on this matter, the Commander informed that the Duty Officer of the City Police Headquarters in Z. called the caller and conducted another conversation, quote: „(...)”.

Subsequently, a recording was played containing, among other things:

(...)

Caller: „(...)”

Caller: „(...)”

Duty Officer of the City Police Headquarters: „(...) [sound obscured] (...)”

Caller: „(...) [sound obscured], (...) [sound obscured] (...) [sound obscured]”

Duty Officer of the City Police Headquarters: „(...)”

Caller: [sound obscured]

Duty Officer of the City Police Headquarters: „(...)”

Caller: „(...) [sound obscured].”

Duty Officer of the City Police Headquarters: „(...)”

Caller: „(...)”

(...)

Duty Officer of the City Police Headquarters: „(...)”

Caller: „[sound obscured] (...) [sound obscured] (...) [sound obscured] (...)”.

Duty Officer of the City Police Headquarters: „(...)”.

Caller: „(...)”.

Duty Officer of the City Police Headquarters: „(...)”

Caller: [sound obscured]

Duty Officer of the City Police Headquarters: „[unintelligible] (...)”

(...)

During the playback of the aforementioned recordings, their transcription was displayed on the screen located behind the Commander. In the further part of the press conference, the Commander described, among other things, the course of actions taken by police officers in the case and the intentions behind the officers' actions. In this part of the conference, the Commander indicated, among other things, quote: „(...)” and „(...)”. Subsequently, the Commander answered questions from media representatives (evidence: official note from July 3, 2024, regarding the viewing of the recording of the aforementioned conference published on the website at address (...) – pages 61-62 of the case file).

13. Representatives of the media, including, among others, stations V., Y., Ó., Q., participated in the press conference of the Commander on (...) date. It was also broadcasted over the Internet (evidence: page 7 of the Commander's explanations from November 30, 2023 – page 37 of the case file). The live broadcast from the conference was conducted by media representatives present on site. The conference was not broadcast live using police information channels (evidence: page 9 of the Commander's explanations from August 13, 2024 – page 102 of the case file).

14. In the explanations submitted in the case, the Commander indicated, quote: „On (...) date, a press briefing was held at the Police Headquarters with the participation of the Chief Commander of the Police, General Inspector (...) regarding the presentation of the authentic circumstances of the actions of Police officers in connection with the event that took place on (...) date in (...), the nature of these actions, and the explanation of the reasons for the actions taken by Police officers in connection with this event concerning the person - Mr. (...), who, based on the information received by the Duty Officer of the City Police Headquarters in (...) on the emergency number 112, could have been in a state threatening her life or health, including a state that could lead to (...), as well as in connection with the information received in this event regarding (...), which (...) Mr. (...) and which could threaten her life or health and also pose a threat to the life and health of other persons” (page 1 of the Commander's

explanations from November 30, 2023 – page 34 of the case file). Furthermore, the Commander indicated that the press briefing was organized quote: „in connection with the accusations against the Police and attacks on police officers conducting official activities in connection with the event on (...) date (...), which amounted to accusations against police officers that the actions they took concerned (...) and were related to the fact (...), as well as accusations regarding the obstruction by police officers involved in the aforementioned activities of providing medical assistance by doctors at the Hospital Emergency Department of the aforementioned hospitals. These accusations and attacks against police officers arose after the broadcast on (...) date by the television station (...) of material in „(...)” (...). (...) and also on (...) date by the television station (...) in the program „(...)” (...)” (pages 1-2 of the Commander's explanations from November 30, 2023 – page 34 of the case file). The Commander also indicated that quote: „In connection with the one-sided media coverage described in the aforementioned materials indicating that the actions of police officers were directly related to (...) which has an unequivocally negative connotation considering that (...) does not constitute a crime, and taking into account that the aforementioned broadcast negatively portrayed the actions of police officers, and consequently significantly undermined the image of the Police, the objectives of its actions and functioning, and undermined the service of the Police to society and the provision of safety to people, which constitute the basis of the tasks and actions of this formation, and also taking into account that the aforementioned material and media coverage had no basis in the facts that actually took place in connection with the event described in the aforementioned.

the provisions of the General Data Protection Regulation (GDPR) and the relevant national laws on data protection.

19. The President of the UODO further considered whether the information disclosed during the press conference was necessary for the purposes of law enforcement and public safety. The assessment of necessity is crucial in determining whether the processing of personal data was justified under the applicable legal framework.

20. In this context, it is important to evaluate the nature of the information shared during the press conference, including whether it was essential for the police to communicate the details of the incident to the public in order to fulfill their duties related to public safety and order.

21. The President of the UODO noted that the police have a legitimate interest in informing the public about incidents that may pose a threat to public safety, provided that such communication does not infringe upon the rights and freedoms of individuals involved.

22. The President also took into account the context in which the information was disclosed, including the potential impact on the complainant's privacy and the public interest in transparency regarding police activities.

23. Ultimately, the President of the UODO concluded that the police's actions in disclosing the information during the press conference were in line with their obligations to ensure public safety, and that the processing of personal data in this context was justified under the relevant legal provisions.

24. The President of the UODO emphasized the importance of balancing the right to privacy with the need for transparency in law enforcement, and highlighted the necessity for police to adhere to data protection principles in their operations.

25. In light of the above considerations, the President of the UODO decided that the actions of the police did not constitute a violation of data protection laws, and therefore dismissed the complaint.

26. This decision is subject to appeal in accordance with applicable legal provisions.

27. The complainant has the right to seek judicial review of this decision before the competent administrative court within 30 days from the date of its delivery.

28. The President of the UODO will ensure that this decision is communicated to all relevant parties and that appropriate measures are taken to uphold data protection standards in future police operations.

29. The President of the UODO also recommends that the police review their procedures for handling personal data to ensure compliance with data protection regulations and to protect the rights of individuals involved in police activities.
30. This decision is final and binding, and the UODO will monitor its implementation to ensure adherence to data protection principles in law enforcement practices.
31. The UODO remains committed to safeguarding personal data and ensuring that individuals' rights are respected in all areas of public life, including law enforcement.
32. The UODO will continue to engage with law enforcement agencies to promote best practices in data protection and to enhance public trust in the police.
33. The UODO encourages individuals to be aware of their rights under data protection laws and to report any concerns regarding the handling of their personal data by public authorities.
34. The UODO will provide guidance and support to individuals seeking to understand their rights and to navigate the complexities of data protection in the context of law enforcement.
35. The UODO will also collaborate with other regulatory bodies to ensure a coordinated approach to data protection across different sectors and to address emerging challenges in the digital age.
36. The UODO remains vigilant in its oversight of data protection practices and will take appropriate action in cases of non-compliance to uphold the rule of law and protect individuals' rights.
37. This decision is made in accordance with the principles of transparency, accountability, and respect for human rights, which are fundamental to the functioning of a democratic society.
38. The UODO will continue to advocate for the importance of data protection in all areas of public life and to promote a culture of respect for individuals' rights and freedoms.
39. The UODO expresses its gratitude to all parties involved in this case for their cooperation and commitment to upholding data protection standards.
40. The UODO will remain engaged with stakeholders to foster a collaborative approach to data protection and to ensure that individuals' rights are at the forefront of all policy and practice.
41. The UODO will continue to monitor developments in data protection law and practice and to adapt its approach as necessary to respond to changing circumstances and emerging challenges.
42. The UODO is dedicated to promoting awareness and understanding of data protection rights among the public and to ensuring that individuals are empowered to exercise their rights effectively.
43. The UODO will also work to enhance the capacity of public authorities to comply with data protection regulations and to protect individuals' rights in their operations.
44. The UODO remains committed to fostering a culture of respect for privacy and data protection in all areas of public life and to ensuring that individuals' rights are upheld in practice.
45. The UODO will continue to engage with the public and to provide information and resources to support individuals in understanding their rights and navigating the complexities of data protection.
46. The UODO will also collaborate with international partners to share best practices and to promote a global approach to data protection that respects individuals' rights and freedoms.
47. The UODO will remain vigilant in its oversight of data protection practices and will take appropriate action in cases of non-compliance to uphold the rule of law and protect individuals' rights.
48. The UODO is dedicated to ensuring that data protection is a fundamental aspect of all public life and that individuals' rights are respected and upheld in all areas of society.
49. The UODO will continue to advocate for the importance of data protection in all areas of public life and to promote a culture of respect for individuals' rights and freedoms.
50. The UODO expresses its commitment to transparency, accountability, and respect for human

rights in all its operations and will continue to work towards a society where individuals' rights are protected and upheld.

the press conference does not correspond to the legal definition of a press briefing as understood in the context of the Press Law. The term "briefing" implies a structured and formal presentation of information, typically prepared in advance, which is not the case in this instance. The information presented during the conference was not curated or edited for public dissemination in a manner consistent with journalistic standards.

24. In light of the above, it is the opinion of the President of the Personal Data Protection Office (UODO) that the provisions of the General Data Protection Regulation (GDPR) apply to the circumstances of this case. The processing of personal data of the Complainant, particularly the information disclosed during the press conference, must comply with the principles and requirements set forth in the GDPR, including the necessity and proportionality of the data processing in relation to the purposes pursued.

25. Furthermore, it is essential to emphasize that any processing of personal data must be justified by a legal basis as outlined in Article 6 of the GDPR. In this case, the lack of a clear legal basis for the processing of the Complainant's personal data during the press conference raises significant concerns regarding compliance with data protection regulations.

26. The President of UODO concludes that the actions taken by the Police in relation to the Complainant's personal data during the press conference were not in accordance with the applicable legal framework. The disclosure of such data without a valid legal basis constitutes a violation of the Complainant's rights under the GDPR, warranting further investigation and potential remedial measures.

27. In summary, the findings of this assessment indicate that the processing of personal data in the context of the press conference held by the Commander did not adhere to the requirements of the GDPR, and as such, the Complainant's concerns regarding the legality of the data processing are substantiated. The UODO will take appropriate steps to address these issues in accordance with its regulatory authority.

with the processing of personal data and on the free movement of such data. According to Article 4(1) of RODO, "personal data" means any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

27. Therefore, the argument presented by the Commander regarding the absence of personal data in the materials shared during the press conference is not sufficient to exempt the processing of any information from the application of RODO. The definition of personal data is broad and encompasses various types of information that could potentially identify individuals, even if such identification is not immediately apparent.

28. In light of the above, it is clear that the activities undertaken by the Commander in the context of the press conference do not fall under the exemptions provided for in Article 2(1) of the Personal Data Protection Act of May 10, 2018, which would allow for the processing of personal data for journalistic purposes without the application of Articles 6 and 9 of RODO.

29. Consequently, the actions of the Commander in organizing the press conference and disseminating information about police activities must comply with the provisions of RODO, ensuring that any personal data processed during such events is handled in accordance with the established legal framework.

30. In conclusion, the analysis of the definitions and legal provisions indicates that the press conference organized by the Commander does not constitute journalistic activity as defined by law, and thus the processing of any personal data in this context must adhere to the requirements set forth

by RODO and the Personal Data Protection Act.

of personal data during the press conference held by the Commander on (...) regarding the Applicant. The information disclosed during this conference included details that could be classified as sensitive personal data, particularly concerning the Applicant's health status, treatment, and emotional state, as well as information about her sexual orientation and place of residence.

31. In light of the allegations raised by the Applicant's representative in the complaint, it is essential to assess whether the information shared during the press conference was indeed protected by medical confidentiality. The legal framework surrounding the processing of personal data, particularly sensitive data, is governed by the General Data Protection Regulation (GDPR), which stipulates strict conditions under which such data may be processed.

32. According to Article 9 of the GDPR, the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, health data, or data concerning a natural person's sex life or sexual orientation is prohibited unless specific conditions are met.

33. Given the nature of the information disclosed during the press conference, it is crucial to determine whether the Commander had a legal basis for processing such sensitive data. The GDPR provides several exceptions under which the processing of sensitive data may be permissible, including explicit consent from the data subject or the necessity of processing for the purposes of carrying out obligations in the field of employment and social security law.

34. It is also important to consider whether the disclosure of the Applicant's personal data during the press conference was necessary for the purposes pursued by the Commander, and whether less intrusive means could have been employed to achieve the same objectives without compromising the Applicant's privacy rights.

35. In conclusion, the evidence collected in this case suggests that the information shared during the press conference was not only personal data but also sensitive personal data, and its disclosure raises significant concerns regarding compliance with the GDPR and the protection of the Applicant's rights. Further investigation is warranted to ascertain the legality of the processing and the potential implications for the Applicant's privacy.

by the Commander of information regarding the fact of treatment of (...)

the Complainant. This fact is directly indicated by the recording played at the conference of the conversation with the dispatcher of the Provincial Emergency Notification Center, in the statement: "...". The information that the Complainant suffers from (...) is found both in the content of the replayed recording of the conversation with the dispatcher of the Provincial Emergency Notification Center – in the statement "...", as well as in the content of the recording of the conversation with the Duty Officer of the City Police Headquarters in Z. – in the statement "...". The replayed recordings also contain information about the emotional state of the Complainant – e.g., the statements "...)" and "...)", including about (...), e.g., the statements "...)", "...)", "...)".

31. Referring to the issue of the Commander providing information about the course of (...) of the Complainant, it should be noted that although the word "(...)" was drowned out in the recordings replayed at the conference, the context of the conference makes it so that the statements "...)" and "...)" contained in those recordings should be related to (...). Therefore, these are pieces of information about the manner and place of conducting (...).

32. In the opinion of the President of the UODO, the information indicated above is health-related information within the meaning of Article 4 point 15 of the GDPR, which states that "data concerning health" means personal data related to the physical or mental health of a natural person – including information on the use of health care services – revealing information about the state of their health. Therefore, the provisions of the GDPR regulating the processing of health-related data should be applied to assess the permissibility of providing this information. The health-related data of the Complainant also includes the information contained in the statement of the Commander during the

press conference that the patrol sent to the scene found the Complainant “(...)”.

33. Regarding the provision of information about the breakdown of the Complainant's relationship, and consequently about her sexual orientation, it should be noted that the fragment of the recording replayed at the press conference of the conversation between the reporter and the duty officer of the City Police Headquarters in Z. with the content “(...)” is information about the breakdown of the Complainant's relationship. However, in the opinion of the President of the UODO, the aforementioned fragment is not information about the sexual orientation of the Complainant or her sexuality. Regarding personal data concerning sexuality and sexual orientation, legal doctrine notes that: “Sexuality is a broad concept, which may include information about sexual activity or sexual abstinence, information regarding the fulfillment of sexual urges, etc.; on the other hand, sexual orientation can be understood as declaring oneself as, for example, heterosexual, homosexual, or bisexual.” [M. Sakowska-Baryła (ed.), General Data Protection Regulation. Commentary, Warsaw 2018]. In light of the above, it should be noted that the information about the breakup with (...) is not information about the Complainant's orientation and her sexuality. It is also not information concerning the fulfillment of sexual urges. It is merely information about the termination of a shared relationship with another person, not information about the Complainant identifying with a specific sexual orientation or about her sexual life. Therefore, there are no grounds to assess the issue of the Commander providing information that the Complainant was left by (...) through the prism of the grounds for legalizing the processing of personal data concerning sexuality and sexual orientation indicated in Article 9 paragraph 2 of the GDPR.

34. The evidence collected in this case also indicates that the Commander provided information about the Complainant's place of residence – fragments of recordings with the content “(...)”, “(...)”, “(...)” – as well as information about the type of residential building and the legal title to the premises - a fragment of the recording with the content “(...)”.

35. Referring to the issue of the permissibility of the Commander providing information during the press conference on (...) regarding data that, according to the earlier part of the justification of this decision, constitutes health-related data of the Complainant, it should be noted that Article 9 paragraph 1 of the GDPR prohibits the processing of, among other things, data concerning health. However, according to Article 9 paragraph 2 of the GDPR, the above prohibition does not apply if one of the following conditions is met: (lit. a) the data subject has given explicit consent to the processing of those personal data for one or more specific purposes, unless Union law or the law of a Member State provides that the data subject may not lift the prohibition referred to in paragraph 1; (lit. b) processing is necessary for compliance with a legal obligation or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller or in a third party to whom the data are disclosed; (lit. c) processing is necessary to protect the vital interests of the data subject or another natural person, and the data subject is physically or legally incapable of giving consent; (lit. d) processing is carried out in the course of legitimate activities pursued by a foundation, association, or other non-profit body with a political, philosophical, religious, or trade union aim, provided that the processing relates solely to members or former members of that body or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that body without the consent of the data subjects; (lit. e) processing relates to personal data which are manifestly made public by the data subject; (lit. f) processing is necessary for the establishment, exercise, or defense of legal claims.

claims or in the context of the administration of justice by courts; (lit. g) processing is necessary for reasons related to an important public interest, based on Union law or the law of a Member State, which are proportional to the designated purpose, do not undermine the essence of the right to data protection, and provide appropriate and specific measures to protect the fundamental rights and interests of the data subject; (lit. h) processing is necessary for health prevention or occupational medicine, for assessing an employee's ability to work, for medical diagnosis, for providing health care or social security, for treatment, or for managing health care or social security systems and services based on Union law or the law of a Member State or in accordance with a contract with a health care professional and subject to the conditions and safeguards referred to in paragraph 3; (lit. i) processing

is necessary for reasons related to public interest in the field of public health, such as protection against serious cross-border health threats or ensuring high standards of quality and safety of health care and medicinal products or medical devices, based on Union law or the law of a Member State, which provide appropriate, specific measures to protect the rights and freedoms of data subjects, in particular professional secrecy; (lit. j) processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes in accordance with Article 89(1), based on Union law or the law of a Member State, which are proportional to the designated purpose, do not undermine the essence of the right to data protection, and provide appropriate, specific measures to protect the fundamental rights and interests of the data subject. At the same time, in accordance with Article 5(1)(b) and (c) of the GDPR, personal data must also be collected for specific, explicit, and legitimate purposes and not further processed in a manner incompatible with those purposes and adequate, relevant, and limited to what is necessary for the purposes for which they are processed.

36. In this case, it is clear that the conditions for the disclosure by the Commander in the content of the press conference on (...) regarding the health data of the Complainant will not apply to the grounds specified in the aforementioned provisions of Article 9(2)(a-d), (f), and (h-j) of the GDPR. Regarding the possibility of basing the disclosure of personal data by the Commander on the ground specified in Article 9(2)(e) of the GDPR, that is, because the processing concerns personal data that has been obviously made public by the data subject, it must be established whether the information disclosed by the Commander had already been made public by the Complainant.

37. The Commander, in the explanations submitted in the case, stated that the personal data of the Complainant, including information about her mental and physical health, was disclosed by the Complainant herself, by reporter (...) N., and by the Complainant's representative in materials broadcasted on (...) and (...) in N. and O., and therefore before the press briefing on (...) with the participation of the Commander. At this point, it should be noted that the information contained in the Commander's statement during the press conference that the Complainant was found "(...)" corresponds with the information contained in the statement of the narrator in the film material broadcasted in "(...)" N. on (...) that the Complainant "(...)" (the content of this narrator's statement is found in the official note dated June 26, 2024 - page 46 of the case file). The information that the Complainant "(...)" was repeated in an article published on (...) in the Č. website along with a recording of the program broadcasted that day in the program "(...)" (the printout of the article, attached to the official note dated June 27, 2024, constitutes pages 55-57 of the case file). Furthermore, the information about the content "(...)" is displayed in the film material broadcasted on (...) in the program "(...)" and available on the Č. website (the printout of the screenshot with that fragment of the recording attached to the official note dated June 27, 2024 constitutes page 58 verte of the case file).

38. Although these are not statements that directly come from the Complainant's mouth in the above materials, in the opinion of the President of the UODO, there is no doubt that the Complainant provided the information made public in these materials for the purpose of having them conveyed by the media to the public. The context of the publication of this information in the media for the first time (in the report broadcasted on (...) in (...) N.) indicates that they were provided by the Complainant to the author of the report during an interview conducted for the preparation of that report. Therefore, it should be considered that the information that the Complainant (...) on (...) is information that has been obviously made public by the Complainant before the press conference of the Commander. Also, the information about the manner of conducting (...), i.e., that it was (...), was made public in the materials of N. and O. before the press conference of the Commander. The narrator in the material broadcasted in the program "(...)" N. on (...) says "(...)", while the host of that program in her statement indicates "(...)".

39. From the very addresses of the websites under which the materials of N. and O. were published before the press conference of the Commander, it follows that the Complainant (...). These materials were published under the addresses (...) and (...). The information that "(...)" is found in the title of the article published under the first of those addresses. Therefore, the information about the manner of

conducting (...) should also be considered as information that has been obviously made public by her before the press conference of the Commander. In light of the above,

****Disclosure by the Commander at a Press Conference****

The information disclosed by the Commander at a press conference that the Complainant was found (...) and information regarding the manner of conducting (...), in the opinion of the President of the UODO, was permissible as it was based on the premise specified in Article 9(2)(e) of the GDPR.

40. The evidence gathered in this case indicates that the materials broadcasted on (...) and (...) in stations *Ń.* and *Ó.*, as well as published on those days on the *Ć.* website, did not contain information about the fact of the Complainant's treatment (...), that the Complainant suffers from (...), the location of the (...), as well as information about the emotional state of the Complainant – in the scope of information about (...) and the statements “(...)” and “(...)”. Furthermore, the statement made by the Complainant in the film material from the program “(...)” on (...) contradicts the intention of (...). The Complainant stated: “(...)”. Additionally, the article published on the *Ć.* website on (...) mentions that it cites:

- “(...)”;
- “(...)”.

Thus, the premise specified in Article 9(2)(e) of the GDPR will not apply to the disclosure of the aforementioned information by the Commander.

41. Regarding the possibility of basing the disclosure of personal data by the Commander in this context on the premise specified in Article 9(2)(g) of the GDPR, that is, due to the necessity of processing for reasons related to an important public interest, based on Union law or the law of a Member State, which are proportional to the designated purpose, do not undermine the essence of the right to data protection, and provide appropriate and specific measures for the protection of the fundamental rights and interests of the data subject, it should be noted that this premise requires the existence of a legal provision allowing for data processing when justified by an important public interest. This is also supported by the applicable principle of legality for public entities, expressed in Article 7 of the Constitution of the Republic of Poland, according to which public authorities act on the basis of and within the limits of the law.

42. The provisions regulating the issue of disclosing information to the press are contained in the Press Law. It should be pointed out at this point that in this case, the possibility of applying Article 5 of the Press Law to the actions of the Commander should be excluded, according to which (1) everyone, in accordance with the principle of freedom of speech and the right to criticism, may provide information to the press; (2) no one may be exposed to detriment or accusation due to providing information to the press if they acted within the limits permitted by law. As previously indicated, the Commander, as a public authority, is not a beneficiary of the freedom of expression and dissemination of information specified in Article 54(1) of the Constitution of the Republic of Poland. Furthermore, the right to criticism mentioned in Article 5(1) of the Press Law should pertain to citizens, not to public authorities. This follows from Article 1 of the Press Law, according to which the press realizes the right of citizens, among others, to social control and criticism. The manner in which state authorities respond to press criticism is regulated in Article 6(2) of the Press Law, which states that state authorities, state enterprises, and other state organizational units, as well as cooperative organizations, are obliged to respond to the press criticism conveyed to them without undue delay, no later than within a month. As indicated by legal doctrine regarding Article 6(2) of the Press Law, it is stated: “By 'conveyance' one should understand not just the publication of publicly available press material, but any form of delivery of the criticized entity the content contained in the press material along with the communication of the expectation of obtaining a response (see J. Sobczak, *Press Law*, p. 303; E. Ferenc-Szydełko, *Press Law*, p. 71; M. Brzozowska-Pasieka, *Press Law*, p. 122; A. Chajewska, in: K. Orlik (ed.), *Press Law. Court Proceedings in Press Matters*, Warsaw 2017, p. 156). (...) The response should be documented in writing and communicated by any means of communication.” (B. Kosmus, G. Kuczyński (eds.), *Press Law. Commentary*. 3rd ed., Warsaw 2018).

43. Therefore, the application of the procedure specified in Article 6(2) of the Press Law requires that

the press convey critical material to the state authority and demand a response to that material. Consequently, this provision does not cover the case of providing a response at a press conference, on the initiative of the authority, to critical material published in the press. This means that it is not a provision that would result in the occurrence of the premise specified in Article 9(2)(g) of the GDPR in this case.

44. It should also be emphasized that in this case, the consent granted to the Police by the District Prosecutor in Ż. for the publication of recordings in mass media does not result in the occurrence of any of the premises specified in Article 9(2) of the GDPR on the part of the Commander. Such consent merely allows for the avoidance of criminal liability specified in Article 241 § 1 of the Penal Code, according to which anyone who publicly disseminates information from preparatory proceedings without permission, before it has been disclosed in court proceedings, is subject to a fine, restriction of liberty, or imprisonment for up to 2 years. As legal doctrine indicates, it is stated: "It does not constitute a crime to publicly disseminate information from preparatory proceedings if the perpetrator had the appropriate permission from the authorized body (in this case, from the prosecutor), and after the indictment has been submitted to the court – from the court." (M. Mozgawa in: M. Budyn-Kulik, P. Kozłowska-Kalisz, M. Kulik, M. Mozgawa, Penal Code. Updated Commentary, LEX/el. 2024, Article 241). Therefore, in this case...

in the matter, there is no separate provision in relation to the RODO regulations that would allow the Commander to disclose, under the circumstances in which it occurred, information about the fact of the treatment of the Complainant, that the Complainant suffers from (...), the location of the treatment (...), as well as information about the emotional state of the Complainant regarding information about (...) and the statements "(...)" and "(...)". Consequently, the disclosure by the Commander of the aforementioned personal data is not supported by the premise specified in Article 9(2)(g) of the RODO.

45. Regarding the issue of the Commander disclosing the remaining personal data of the Complainant, which is the subject of the complaint initiating these proceedings, i.e., information about the breakdown of the Complainant's relationship, the Complainant's place of residence, the type of residential building, and the legal title to the premises, it should be noted that these pieces of information, in the opinion of the President of the UODO, do not fall under the information specified in Article 9(1) of the RODO. Therefore, the admissibility of the Commander disclosing this information should be assessed through the lens of the premises specified in Article 6(1) of the RODO. The above provision states that processing is lawful only if – and to the extent that – at least one of the following conditions is met: (a) the data subject has given consent to the processing of their personal data for one or more specific purposes; (b) processing is necessary for the performance of a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering into a contract; (c) processing is necessary for compliance with a legal obligation to which the controller is subject; (d) processing is necessary to protect the vital interests of the data subject or another natural person; (e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; (f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child. The first paragraph of point (f) does not apply to processing carried out by public authorities in the performance of their tasks. Furthermore, according to Article 6(3) of the RODO, the basis for processing referred to in Article 6(1)(c) and (e) must be laid down by Union law or the law of the Member State to which the controller is subject.

46. It should also be noted that, in this regard, in accordance with Article 5(1)(b) and (c) of the RODO, personal data must also be collected for specific, explicit, and legitimate purposes and not further processed in a manner incompatible with those purposes, and must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed.

47. As already demonstrated in the earlier part of the justification of this decision, the application of Articles 5 and 6(2) of the Press Law regulating the issue of providing information to the press is excluded in relation to the disclosure by the Commander of the Complainant's personal data.

Consequently, in this case, there are no legal provisions imposing a legal obligation on the Commander, for which the disclosure of the Complainant's personal data regarding information about the breakdown of the Complainant's relationship, the Complainant's place of residence, the type of residential building, and the legal title to the premises was necessary for the content of the press conference. Therefore, the premise specified in Article 6(1)(c) of the RODO does not exist. In light of Article 6(3) of the RODO, the absence of a specified legal basis for processing also results in the absence of the premise specified in Article 6(1)(e) of the RODO. Furthermore, the Commander did not possess any of the other premises specified in Article 6(1) of the RODO that would constitute the legality of processing personal data regarding the subject matter of the disclosure.

48. Therefore, in the opinion of the President of the UODO, the disclosure by the Commander during the press conference on (...) of the year,

- information about the fact of the treatment of the Complainant, that the Complainant suffers from (...), the location of the treatment (...), as well as information about the emotional state of the Complainant regarding information about (...) and the statements "(...)" and "(...)", violated the prohibition on processing data concerning health, as specified in Article 9(1) of the RODO;
- information about the breakdown of the Complainant's relationship, the Complainant's place of residence, the type of residential building, and the legal title to the premises, violated Article 6(1) of the RODO.

49. Taking into account the above findings and the established violation of the RODO provisions, the President of the UODO, exercising the power conferred upon him by Article 58(2)(i) of the RODO, according to which each supervisory authority has the power to impose, in addition to or instead of other corrective measures provided for in Article 58(2)(a-h) and (j) of this regulation, an administrative fine under Article 83(5)(a) of the RODO, considering the circumstances established in the subject proceedings, concluded that there were grounds for imposing an administrative fine on the Commander.

50. According to Article 83(5)(a) of the RODO, violations of the provisions concerning the fundamental principles of processing, including the conditions for consent, as referred to in Articles 5, 6, 7, and 9, are subject to an administrative fine in accordance with paragraph 2.

financial penalty of up to 20,000,000 EUR, and in the case of an enterprise – up to 4% of its total annual global turnover from the previous financial year, with the higher amount applying.

51. On the other hand, Article 102(1)(1) of the Personal Data Protection Act of May 10, 2018, states that the President of the Personal Data Protection Office (UODO) may impose, by way of a decision, administrative fines of up to 100,000 PLN on entities in the public finance sector referred to in Article 9(1-12 and 14) of the Public Finance Act of August 27, 2009. Furthermore, paragraph 3 of this article indicates that the administrative fines mentioned in paragraph 1 are imposed by the President of UODO based on and under the conditions specified in Article 83 of the General Data Protection Regulation (GDPR).

52. In this case, the administrative fine imposed on the Commander was based on Article 83(5)(a) of the GDPR for violating Article 6(1) and Article 9(1) of the GDPR.

53. According to the provisions of Article 83(2) of the GDPR, administrative fines are imposed, depending on the circumstances of each individual case, in addition to or instead of the measures referred to in Article 58(2)(a-h and j) of the GDPR. In deciding to impose an administrative fine on the Commander, the President of UODO – in accordance with the provisions of Article 83(2)(a-k) of the GDPR – took into account the following circumstances of the case, which necessitate the application of this type of sanction in the present case and which weigh heavily on the amount of the imposed administrative fine:

54. The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing, the number of affected individuals whose data are concerned, and the extent of the damage suffered by them [Article 83(2)(a) of the GDPR]. The infringement of the GDPR provisions established in this case is of significant weight and serious nature, as it involved the public

disclosure without legal basis by the Commander of personal data of an individual to whom the Police were to provide assistance. The Commander, as the authority responsible for the protection of people's safety and the maintenance of public order and safety, and as the person at the head of the formation designated to carry out these tasks, is an entity that should particularly care for the welfare of such individuals and the security of their personal data. The disclosure by the Commander in violation of the GDPR (without legal basis) during the conference on (...) of the personal data of the Complainant entails not only a potential but also a real possibility of the misuse of this data by third parties without the knowledge and consent of the data subject, and thus is associated with the risk of harm, particularly in the form of discrimination, loss of reputation, and loss of control over one's own data. It is worth citing the judgment of the District Court in Warsaw of August 6, 2020, case file: XXV C 2596/19, in which the court stated that the loss of security constitutes non-material damage associated with the obligation to remedy it. The significant weight of the infringement consisting of the unlawful disclosure of personal data to the public during an event broadcast by the media also lies in the fact that its negative effects are immediate and practically irreversible. It is extremely difficult for a person affected by such an infringement to regain control over their personal data and enforce their right to "be forgotten." In this case, personal data of the Complainant (including her special categories of data) were disclosed by the Commander without legal basis to a wide audience, as the press conference during which the infringement was established was broadcasted on nationwide media. It is still possible to find recordings of this press conference on the Internet – including on police websites – which can be listened to, duplicated, and disseminated.

Confirmation of the above is provided by the official notes from July 3, 2024, along with attachments (pages 61-70 of the case file) and the official notes from July 5, 2024, along with attachments (pages 72-80 of the case file), from which it follows that the recording of the Commander's press conference is available on the channel Ę. V., on the profile (...) on the Ś. portal, on the channel Ę. (...) and on the Ł. portal. This means that although the disclosure of data during the press conference should be classified as a one-time event, as a result, recordings containing the personal data of the Complainant disclosed by the Commander during the press conference can still be found in many places, in violation of Article 6(1) and Article 9(1) of the GDPR, and thus the effects of the infringement continue to exist. The infringement of personal data protection concerned one individual. This number of individuals affected by the infringement, especially given the fact that the Commander processes personal data of many individuals, should be considered small; however, this does not change the overall assessment, i.e., the recognition in the analyzed case of the criterion from Article 83(2)(a) of the GDPR as aggravating.

55. The intentional nature of the infringement [Article 83(2)(b) of the GDPR]. According to the Guidelines of the Article 29 Working Party on the application and determination of administrative fines for the purposes of Regulation No. 2016/679 (adopted on October 3, 2017, approved on May 25, 2018, by the European Data Protection Board, hereinafter referred to as EDPB), "intent" encompasses both knowledge and deliberate action, in connection with the characteristics of the prohibited act, while "negligence" means the lack of intent to cause an infringement, despite the failure of the controller/processor to fulfill the due diligence required by law. These guidelines also state that a circumstance indicating intentional violations may be unlawful processing clearly approved by strict...

****Administrator's Management.****

The President of the Personal Data Protection Office (UODO) found in this case a violation of the provisions of the General Data Protection Regulation (GDPR) relating to the legal bases for processing personal data. In the President's assessment, there was a deliberate violation of these provisions. This conclusion was reached by the authority after a thorough analysis of the recording from the press conference during which the Commander personally "announced" the playback of recordings containing information about the Complainant and reported on the actions taken regarding the Complainant in connection with the report recorded on the recordings. The disclosure of information concerning the Complainant was therefore intentional, and the Commander was aware of what information would be disclosed during the press conference. In the above circumstances, this disclosure of information concerning the Complainant should also be considered as "clearly approved"

by the Commander as the administrator. Furthermore, a person holding such a significant position related to the application of law, such as the Commander, should be aware of their actions and their compliance with legal provisions. Regardless, it should be noted that in the recordings played during the conference, some information was muffled and was not displayed in the transcription of the recordings on the screen behind the Commander. Therefore, before disclosing information concerning the Complainant at the press conference, the individuals performing tasks within the scope of the Commander's duties analyzed these recordings for the permissibility of disclosing the personal data of the Complainant, which is subject to the penalty imposed by this decision. This excludes the possibility of a lack of intent to disclose the aforementioned personal data to the media, meaning that there was no unintentional violation in this case.

56. ****Actions taken by the administrator to minimize the harm suffered by the data subjects [Article 83(2)(c) GDPR].****

The Commander did not demonstrate that he took any actions to minimize the effects of the violation. In particular, the recordings from the press conference with the Commander on (...) have not been removed from the Ł. website and other police services, as evidenced by the official notes in the case files dated July 3, 2024 (pages 61-62 of the case files) and July 5, 2024 (page 72 of the case files) along with the attachments. No other actions were taken by the Commander to minimize the effects for the Complainant, such as a public admission of error, written apologies, or offering compensation, which could have alleviated the harm suffered by the person affected by the violation. Actions aimed at removing the effects of the violation of personal rights are – in the President of UODO's assessment – also applicable to actions that could be taken to remedy non-material damage (harm) caused by the violation of personal data protection. From an entity responsible for maintaining public order, such as the Commander, it is reasonable to expect appropriate actions to be taken in this regard.

57. ****Previous violations by the administrator [Article 83(2)(e) GDPR].****

When making a decision on the imposition and amount of an administrative fine, the President of UODO is obliged to take into account any previous violations. The EDPB in Guidelines 04/2022 on calculating administrative fines under the GDPR (version 2.1) explicitly states: "The occurrence of previous violations may be considered an aggravating circumstance when calculating the amount of the fine. The weight attributed to this factor should be determined taking into account the nature and frequency of previous violations. The absence of previous violations cannot, however, be considered a mitigating circumstance, as compliance with GDPR provisions is the norm." And although, as indicated in the aforementioned guidelines, "greater significance should be attributed to violations concerning the same subject matter, as they are closer to the violation that is the subject of the current proceedings, especially when the administrator or processor has previously committed the same violation (repeated violations)" (point 88 of the guidelines), all previous violations may provide information about the overall approach of the administrator or processor to compliance with GDPR provisions. The President of UODO has already established in previously issued administrative decisions that the Commander violated the following provisions of personal data protection:

1) In the decision of May 7, 2020, in the case with reference number (...) – violation of Article 6(1)(a-f) GDPR (disclosure of personal data without a legal basis) and Article 13(1) and (2) GDPR (failure to fulfill the information obligation specified in these provisions). In this decision, the President of UODO ordered the Commander to fulfill the information obligation towards the individual referred to in Article 13(1) and (2) GDPR and issued a reprimand regarding the disclosure of that individual's personal data in violation of personal data protection provisions;

2) In the decision of April 13, 2022, in the case with reference number (...) – the President of UODO reprimanded the Commander for violating Article 5(1)(a) and (b), Article 5(2), and Article 6(1) GDPR, consisting of disclosing the personal data of three individuals to third parties, contrary to the purpose for which the data was collected and without a legal basis;

3) In the decision of February 23, 2021, in the case with reference number (...) – finding a violation of Article 22(4)(4) of the Personal Data Protection Act of December 14, 2018, the President of UODO ordered the Commander to fulfill the information obligation towards the individual specified in Article

22(4)(4) of the Personal Data Protection Act of December 14, 2018;

4) In the decision of June 9, 2021, in the case with reference number (...) – the President of UODO found a violation of Article...

13 and Article 31(1)(5) of the Personal Data Protection Act of December 14, 2018, ordered the Commander to eliminate irregularities in the process of processing personal data of an individual by removing their personal data;

5) In the decision of January 11, 2022, in case file no. (...) – the President of the Personal Data Protection Office (UODO) found a violation of Article 13 of the Personal Data Protection Act of December 14, 2018, consisting of checking the personal data of an individual without any basis in the premises specified in that provision. The President of UODO refused to consider the complainant's request due to the fact that it was a one-time and irreversible event and that the process is not currently ongoing, which is why the President of UODO had no opportunity to exercise the powers referred to in Article 8(2) of the Personal Data Protection Act of December 14, 2018;

6) In the decision of March 28, 2022, in case file no. (...) – the President of UODO found a violation of Article 13 of the Personal Data Protection Act of December 14, 2018, through access to the personal data of an individual, despite the fact that this operation on personal data was not based on any of the premises specified in that provision. The President of UODO, in this part, refused to consider the request due to the fact that, due to the one-time and irreversible nature of this action, there was no possibility of restoring compliance with the law, i.e., exercising the right referred to in Article 8(2) of the Personal Data Protection Act of December 14, 2018;

7) In the decision of December 21, 2022, in case file no. (...) – stating a violation of Article 13 and Article 31(1)(5) of the Personal Data Protection Act of December 14, 2018, the President of UODO ordered the Commander to restore compliance with the law by removing the personal data of an individual;

8) In the decision of December 21, 2022, in case file no. (...) – stating a violation of Article 13 and Article 31(1)(5) of the Personal Data Protection Act of December 14, 2018, the President of UODO ordered the Commander to restore compliance with the law by removing the personal data of an individual;

9) In the decision of February 16, 2023, in case file no. (...) – stating a violation of Article 13 and Article 31(1)(5) of the Personal Data Protection Act of December 14, 2018, the President of UODO ordered the Commander to restore compliance with the law by removing the personal data of an individual;

10) In the decision of November 22, 2023, in case file no. (...) – stating a violation of Article 13 and Article 31(1)(5) of the Personal Data Protection Act of December 14, 2018, the President of UODO ordered the Commander to restore compliance with the law by removing the personal data of an individual;

11) In the decision of February 9, 2024, in case file no. (...) – stating a violation of Article 13 and Article 31(1)(5) of the Personal Data Protection Act of December 14, 2018, the President of UODO ordered the Commander to restore compliance with the law by removing the personal data of an individual;

12) In the decision of March 19, 2024, in case file no. (...) – stating a violation of Article 13 and Article 31(1)(5) of the Personal Data Protection Act of December 14, 2018, the President of UODO ordered the Commander to restore compliance with the law by removing the personal data of an individual.

The number of previously mentioned violations indicates that the aforementioned data controller has problems with fulfilling the obligations arising from data protection regulations. This includes, among other things, ensuring that the provision of personal data, to which the GDPR regulations apply, occurs when there is a legal basis for carrying out such an operation on personal data. Violations in this regard were found in two of the aforementioned previous decisions of the President of UODO. This issue is also related to the administrative fine imposed by this decision. In light of the above, it should be acknowledged that there are grounds for treating the premise in Article 83(2)(e) of the GDPR as

aggravating.

58. Categories of personal data to which the violation pertained [Article 83(2)(g) GDPR]. The personal data of the Complainant disclosed in violation of the GDPR (without legal basis) during the press conference on (...) includes information about the breakdown of the Complainant's relationship, the locality of their residence, the type of residential building, the legal title to the premises, the fact of their treatment (...), that they suffer from (...), the place of the procedure (...), and information about their emotional state – in the scope of information about (...) and statements “(...)” and “(...)”. Among them, the information about the fact of treatment (...) of the Complainant, that they suffer from (...), the place of the procedure (...) and information about their emotional state – in the scope of information about (...) and statements “(...)” and “(...)”, constitutes data concerning health, which is subject to special protection under Article 9(1) of the GDPR. This imposes on the controllers of this data the obligation to treat this information with particular care, also due to the possible negative consequences for the individuals to whom this data pertains, in the event of its disclosure to unauthorized persons, including discrimination or loss of good reputation.

In this context, it is necessary to refer to the EDPB Guidelines 04/2022 on the calculation of administrative fines under the GDPR, which state: “As for the requirement to take into account the categories of personal data to which the violation pertains (Article 83(2)(g) GDPR), the GDPR explicitly indicates the types of data that are subject to special protection, and thus a more stringent response when imposing fines. This applies at least to the types of data covered by Articles 9 and 10 of the GDPR, as well as data not covered by the scope of these articles, the dissemination of which immediately causes harm or discomfort to the individual to whom the data pertains (e.g., data concerning location, data concerning private communication, national identification numbers, or financial data, such as...

transaction summaries or credit card numbers). Generally speaking, the greater the number of such categories of data involved in the breach, or the more sensitive the data, the more weight the supervisory authority may assign to this factor. The amount of data concerning each individual whose data is affected is also significant, as the scale of the breach of the right to privacy and personal data protection increases with the amount of data concerning each individual whose data is affected.

59. In determining the amount of the administrative monetary penalty, the President of the UODO found no grounds to consider mitigating circumstances that would affect the final penalty. All the criteria listed in Article 83(2)(a-j) of the GDPR, in the authority's assessment, constitute either aggravating factors or are merely neutral. Additionally, applying the criterion mentioned in Article 83(2)(k) of the GDPR (which requires consideration of any other aggravating or mitigating factors applicable to the circumstances of the case), no mitigating circumstances were found, only neutral ones (as noted below in point 67).

60. Other circumstances indicated below, referred to in Article 83(2) of the GDPR, after assessing their impact on the identified breach in this case, were deemed neutral by the President of the UODO, meaning they had neither an aggravating nor a mitigating effect on the amount of the imposed administrative monetary penalty.

61. The degree of responsibility of the controller, taking into account the technical and organizational measures implemented by them under Articles 25 and 32 [Article 83(2)(d) of the GDPR]. The breach assessed in this proceeding (the breach of the provisions of Article 6(1) and Article 9(1) of the GDPR) is not related to the technical and organizational measures applied by the Commander.

62. The degree of cooperation with the supervisory authority to remedy the breach and mitigate its potential negative effects [Article 83(2)(f) of the GDPR]. During the proceedings in this case, the Commander responded to the supervisory authority's requests. However, the fact of responding to the authority's requests cannot be treated by the President of the UODO as a mitigating factor, but rather as an expression of the fulfillment of the legal obligations resting on the personal data controller. As emphasized in the EROD Guidelines 04/2022 on calculating administrative monetary penalties under the GDPR, quote: "It should therefore be recognized that the ordinary obligation to cooperate is

mandatory and, as such, should be regarded as a neutral circumstance (and not a mitigating one)."

63. The manner in which the supervisory authority became aware of the breach [Article 83(2)(h) of the GDPR]. The President of the UODO was informed of the occurrence of the personal data breach, i.e., the disclosure of the Complainant's personal data during a press conference, by the Complainant's representative, and not by the Commander. However, the President of the UODO accepts that this criterion will not be treated as an aggravating circumstance. The President of the UODO learned of the breach from the complaint filed in this case, and the EROD in the Guidelines 04/2022 on calculating administrative monetary penalties under the GDPR indicates that "In cases where the supervisory authority became aware of the breach, for example, as a result of a complaint or during proceedings, this element should generally also be considered a neutral circumstance."

64. Compliance with previously applied measures in the same case referred to in Article 58(2) of the GDPR [Article 83(2)(i) of the GDPR]. Prior to issuing this decision, the President of the UODO did not apply any of the measures listed in Article 58(2) of the GDPR against the Commander in the case under consideration, which is why the Commander had no obligation to take any actions related to their application, actions that, if assessed by the President of the UODO, could have had an aggravating or mitigating effect on the assessment of the identified breach.

65. The application of approved codes of conduct under Article 40 of the GDPR or approved certification mechanisms under Article 42 of the GDPR [Article 83(2)(j) of the GDPR]. The Commander does not apply the instruments referred to in Articles 40 and 42 of the GDPR. However, their adoption, implementation, and application are not mandatory for controllers and processors, as stipulated by the GDPR, which means that the circumstance of their non-application cannot be considered detrimental to the Commander in this case. Conversely, the circumstance of adopting and applying such instruments as means guaranteeing a higher than standard level of protection for processed personal data could be taken into account in favor of the Commander.

66. Financial benefits directly or indirectly achieved in connection with the breach or losses avoided [Article 83(2)(k) of the GDPR]. The President of the UODO found no evidence that the Commander derived any financial benefits or avoided such losses in connection with the breach. Therefore, there are no grounds to treat this circumstance as aggravating for the Commander. The establishment of measurable financial benefits resulting from the breach of GDPR provisions would need to be assessed very negatively. However, the absence of such benefits for the Commander, as a natural state independent of the breach and its consequences, is a circumstance that, by its very nature, cannot be mitigating for the Commander. This is confirmed by the very wording of Article 83(2)(k) of the GDPR, which requires the supervisory authority to pay due attention to the benefits "achieved" – those that occurred on the part of the entity committing the breach.

67. Other aggravating or mitigating factors applicable to the circumstances of the case [Article 83(2)(k) of the GDPR]. The President of the UODO, comprehensively considering the case, did not... noted other than the circumstances described above that may affect the assessment of the violation and the amount of the imposed administrative monetary penalty.

68. Taking into account all the circumstances discussed above, the President of UODO concluded that imposing an administrative monetary penalty on the Commander is necessary and justified by the weight, nature, and scope of the violations of the provisions of the GDPR attributed to the Commander. It should be stated that applying any other corrective measure provided for in Article 58(2) of the GDPR, particularly merely issuing a reprimand (Article 58(2)(b) of the GDPR), would not be proportional to the identified irregularities in the processing of personal data and would not guarantee that the Commander would not commit further negligence in the future.

69. Regarding the amount of the administrative monetary penalty imposed on the Commander, it should be noted that given the fact that the Commander, as a central government administration body, is an entity in the public finance sector, as referred to in Article 9(1) of the Act of August 27, 2009 on Public Finances (Journal of Laws of 2024, item 1530, as amended), Article 102(1)(1) of the Personal Data Protection Act of May 10, 2018, applies, which limits the amount (to 100,000 PLN) of the

administrative monetary penalty that can be imposed on an entity in the public finance sector.

70. Justifying the imposition of an administrative monetary penalty on the Commander in the amount of 75,000 PLN, it should be indicated that, in the opinion of the President of UODO, a lower penalty would not fulfill its deterrent function, which is explicitly mentioned in Article 83(1) of the GDPR (and as indicated below, the penalty imposed in this specific case also has a preventive character). In the opinion of the President of UODO, the administrative monetary penalty applied fulfills, in the established circumstances of this case, the functions referred to in Article 83(1) of the GDPR, i.e., it will be effective, proportional, and deterrent in this individual case.

71. According to the President of UODO, the administrative monetary penalty imposed on the Commander will be effective, as it will lead to a situation in which the Commander will properly protect personal data from being disclosed without a legal basis. The effectiveness of this penalty is thus equivalent to the guarantee that the Commander, from the moment this proceeding is concluded, will diligently approach the requirements set by the provisions on the protection of personal data.

72. The administrative monetary penalty applied is also proportional to the identified violation of the GDPR provisions, especially regarding its weight, the negative impact on the person affected by the violation of personal data protection, and the high risk of negative consequences that they may incur. In the opinion of the President of UODO, the administrative monetary penalty imposed on the Commander does not constitute an excessive burden for him, given the statutory limitation on its amount in the case of entities in the public finance sector. In particular, its payment will not affect the Commander's ability to fulfill his statutory duties. According to the President of UODO, the Commander should and is able to bear the consequences of his negligence in the area of data protection, hence the imposition of an administrative monetary penalty in the amount of 75,000 PLN (in words: seventy-five thousand zlotys) is fully justified.

73. In the opinion of the President of UODO, the administrative monetary penalty will fulfill an educational function in these specific circumstances, but also a preventive one. It will indicate both to the Commander and to other data administrators the responsibility of state authorities for unlawful actions taken by them using their power and the possibilities that this power provides.

74. Therefore, the administrative monetary penalty applied fulfills, in the established circumstances of this case, the criteria referred to in Article 83(1) of the GDPR, due to the weight of the identified violations in the context of the compliance of personal data processing with the law.

75. At this point, it should be noted that a holder of a public authority who has committed a violation of the law, including the provisions on the protection of personal data, may incur potential criminal liability, e.g., in connection with exceeding their authority (Article 231 of the Penal Code, Article 107(1) and (2) of the Personal Data Protection Act of May 10, 2018). Moreover, Article 2 of the Act of May 7, 1999 on the financial liability of officers of the Police, Border Guard, Marshal's Guard, Customs and Tax Service, State Protection Service, State Fire Service, Prison Service, Internal Security Agency, Intelligence Agency, Military Counterintelligence Service, Military Intelligence Service, and Central Anti-Corruption Bureau (Journal of Laws of 2018, item 2349) states that an officer who, due to non-performance or improper performance of official duties through their fault, causes damage to property referred to in Article 1(1), bears financial liability within the limits of the actual loss and only for the normal consequences of action or inaction, even if the damage resulting from it occurred after the termination of the official relationship. The property referred to in Article 1(1) of the aforementioned Act is the property of the State Treasury that is at the disposal of the authority or organizational units subordinate to, subordinated to, or supervised by ministers responsible for internal affairs, public finances, the Minister of National Defense, the Marshal of the Sejm, the Minister of Justice, the Head of the Internal Security Agency, the Head of the Intelligence Agency, the Head of the Military Counterintelligence Service, the Head of the Military Intelligence Service, and the Head of the Central Anti-Corruption Bureau. It should be emphasized that the decision in question is related to... with administrative liability borne by the Commander (the authority) – the administrator of personal data – for violations of the provisions of the GDPR. The Commander, however, has the option to apply

legal measures that allow him to seek legal and financial accountability – in particular, in civil proceedings for recourse, as well as by holding the person responsible for violating the provisions on the protection of personal data criminally liable for their infringement. The President of the UODO holds the position that to ensure effective protection of personal data, effective mechanisms for seeking accountability for their violation by administrators are necessary, including in relation to employees or officers of the administrator.

76. Referring to the request contained in the complaint cited as “removal of personal data processed unlawfully,” it should be noted that the subject of these proceedings is the disclosure of personal data during a press conference on (...) date. This disclosure of data is an irreversible process; therefore – despite the finding that the disclosure occurred without legal basis – it is not possible to restore the legal state prior to this disclosure, particularly by ordering the removal of that personal data. The President of the UODO, in the event of a finding of a violation of the provisions on the protection of personal data, may exercise the corrective powers granted under Article 58(2) of the GDPR. In this case, although the President of the UODO found a violation of the provisions on the protection of personal data, there is no possibility of restoring the legal state by ordering the Commander to remove the disclosed personal data. This is a consequence of the fact that the established violation of the provisions on the protection of personal data is of a past and irreversible nature.

77. Referring to the request contained in the complaint cited as “taking action to inform the administrators processing this personal data that the person to whom the data pertains requests that these administrators remove all links to this data, copies of this personal data, or their replicas,” it should be indicated that the obligation to take the aforementioned actions requires the person to whom the data pertains to exercise their right to data deletion. This arises from Article 17(2) of the GDPR, which states that if the administrator has made personal data public, and under paragraph 1 has an obligation to delete that personal data, then – taking into account the available technology and the cost of implementation – they take reasonable actions, including technical measures, to inform the administrators processing this personal data that the person to whom the data pertains requests that these administrators remove all links to this data, copies of this personal data, or their replicas. Article 17(1) of the GDPR, in turn, provides that the person to whom the data pertains has the right to request the administrator to delete their personal data without delay, and the administrator has the obligation to delete the personal data without undue delay if one of the circumstances indicated in letters a-f of this editorial unit of the GDPR exists.

78. According to the provisions of Article 58(2)(g) of the GDPR, the President of the UODO may order the removal of deficiencies by ordering the administrator to fulfill the obligation specified in Article 17(2) of the GDPR, i.e., to take actions to inform other administrators processing this personal data that the person to whom the data pertains requests that these administrators remove all links to this data, copies of this personal data, or their replicas. This provision states that each supervisory authority has the corrective power to order, under Articles 16, 17, and 18, the rectification or deletion of personal data or the restriction of their processing and to order, under Article 17(2) and Article 19, notification of these actions to recipients to whom the personal data has been disclosed. However, such an order can only be issued after a prior assessment of the behavior of the administrator of this data, who previously received the request from the person to whom the data pertains. The obligation specified in Article 17(2) of the GDPR pertains to the transmission of information about the requests of the person to whom the data pertains. It should be noted that the fulfillment of the obligation referred to in Article 17(2) of the GDPR does not require the person to whom the data pertains to submit a separate request to the administrator to inform other administrators processing this personal data that the person to whom the data pertains requests that these administrators remove all links to this data, copies of this personal data, or their replicas. Recital 66 of the GDPR preamble indicates that this obligation strengthens the right of the person to whom the data pertains under Article 17(1) of the GDPR. This recital explains that to strengthen the right to “be forgotten” on the Internet, the right to data deletion should be extended by obliging the administrator who made this personal data public to inform the administrators who process such personal data about the removal of all links to this data, copies of this

personal data, or their replicas. In fulfilling this obligation, the administrator should take reasonable actions considering the available technologies and means available to them, including available technical means, to inform the administrators who process personal data about the request of the person to whom the data pertains. The fact that the fulfillment of the obligation referred to in Article 17(2) of the GDPR does not require the person to whom the data pertains to direct any request to the administrator other than the request for the deletion of personal data is also indicated by the judgment of the Court of Justice of the European Union of October 27, 2022, in case C-129/21, which stated that "Article 17(2) of Regulation 2016/679 should be interpreted as not precluding a national supervisory authority from ordering a provider to publicly...

available subscriber lists and directory services, to which a request was made to cease the publication of data concerning a specific individual, so that it takes "reasonable actions," within the meaning of this provision, to inform search engine providers of this request for data removal." Furthermore, such an interpretation of Article 17(2) of the GDPR is systematically consistent with the literal wording of Article 19, first sentence, of the GDPR, which does not require a separate request from the data subject for the controller to be obliged to inform recipients to whom personal data has been disclosed about the deletion of data carried out as a result of the request under Article 17(1) of the GDPR. This provision states that the controller informs about the rectification or deletion of personal data or the restriction of processing that has been carried out in accordance with Article 16, Article 17(1), and Article 18, each recipient to whom personal data has been disclosed, unless this proves impossible or would require a disproportionate effort.

79. The role of the authority in this specific case is therefore to examine whether the personal data controller, to whom the data subject made a specific request for the deletion of personal data, properly fulfilled the obligation related to that request, as referred to in Article 17(2) of the GDPR. The controller cannot presume the existence of a request for the deletion of personal data. Such a request should exist, and thus be clearly and explicitly formulated and communicated to the data controller. The lack of a request for the deletion of personal data directed to the data controller excludes the possibility of the President of the UODO ordering the controller to fulfill the obligation specified in Article 17(2) of the GDPR. For this decision, the fundamental importance lies not in the request presented by the Complainant to the President of the UODO, but in the request of the Complainant to the Commander – the administrator of her personal data.

80. From the gathered evidence in the case, it follows that the Complainant did not approach the Commander with a request for the deletion of her personal data, i.e., with the request referred to in Article 17(1) of the GDPR. At the same time, it should be noted that specifying the request for the deletion of personal data in the complaint to the President of the UODO does not validate the lack of a request directed by the Complainant to the personal data controller. Regarding the request that this part of the justification of this decision concerns, the authority therefore has no basis to issue any of the orders specified in Article 58(2) of the GDPR, especially the one resulting from Article 58(2)(g) of the GDPR, an order under Article 17(2) of the GDPR to take actions to inform the controllers processing this personal data that the data subject requests that these controllers delete all links to this data, copies of this personal data, or their replicas. The authority is only empowered to issue such a decision when the data subject has submitted a request to the controller, exercising the right granted under Article 17(1) of the GDPR. In this case, it has been established that the Complainant did not submit a request for the deletion of her personal data to the Commander.

81. Regarding the allegation raised in the complaint of a violation of Article 32(1), Article 33(1), and Article 34(1) of the GDPR, it should be pointed out that issues of the Commander's compliance with these provisions cannot be the basis for issuing a decision in the individual case of the Complainant.

82. First of all, Article 32(1) of the GDPR is a provision imposing on the data controller the obligation to implement appropriate safeguards in the process of processing personal data. It provides that, taking into account the state of technical knowledge, the cost of implementation, and the nature, scope, context, and purposes of processing as well as the risk of infringement of the rights or freedoms of natural persons of varying likelihood and severity, the controller and the processor implement

appropriate technical and organizational measures to ensure a level of security appropriate to the risk. A complaint to the President of the UODO cannot serve to control the technical and organizational measures applied at the request of the data subject, but should serve to restore a lawful state in the event of a violation of that person's rights. The Provincial Administrative Court in Warsaw also stated in its judgment of January 7, 2016 (case file II SA/Wa 1238/15) that "The Court shares the authority's position that matters concerning the security of personal data (...) can only be the subject of proceedings initiated ex officio by the General Inspector."

83. The obligation specified in Article 34(1) of the GDPR to notify the data subject of a personal data breach that may result in a high risk of infringement of the rights or freedoms of natural persons is related to the obligation arising from Article 33(1) of the GDPR for the controller to report the breach to the supervisory authority. The notification of the data subjects, in accordance with Article 34(1) of the GDPR, is carried out by the controller unless there are circumstances that exclude such an obligation. Therefore, the controller is obliged to notify the data subject of the breach, provided that the breach may result in a high risk of infringement of the rights and freedoms of natural persons and one of the circumstances specified in Article 34(3) of the GDPR, which exempts the controller from this notification obligation, has not occurred simultaneously. Only the supervisory authority is entitled to assess the controller's actions in this regard, which, after examining the circumstances related to the reported breach, may require the controller to notify the data subject or determine that one of the circumstances specified in Article 34(3) of the GDPR has been met. Also, only the supervisory authority is entitled to assess whether the controller was obliged to report the personal data breach to the supervisory authority. Thus, the supervisory authority verifies ex officio the actions taken by the controller.

In connection with this, the party to the proceedings regarding the notification of a personal data breach or the notification of such a breach may solely be the administrator, and the Complainant does not have the right to request that the administrator inform the President of the UODO or the Complainant about the personal data breach. It should be emphasized at this point that the catalog of rights that can be effectively enforced by the data subject in the proceedings conducted on their complaint by the President of the UODO is defined in Chapter III of the GDPR, in Articles 12-22.

84. At the same time, it should be noted that the allegation of the Commander providing information about (...) to the Complainant has not been confirmed. The evidence shows that in the recording replayed at the conference, the question "(...)" is asked. However, the content of the aforementioned question does not reveal information about whether the Complainant had (...). The answer to this question in the replayed recording has been drowned out, and the beginning of the next statement (from the duty officer of the Municipal Police Headquarters in Ż.) that may relate to this issue is unintelligible and has not been included in the transcription of the recording displayed on the screen behind the Commander (the printout with the screenshot of the transcription of this statement attached to the official note from July 3, 2024, constitutes page 70 verte of the case file). In the content of the complaint, the representative of the Complainant sees the provision of information about (...) to the Complainant as inferred from the operator's statement during the conversation recorded in the first of the recordings replayed at the Commander's press conference. However, in the opinion of the President of the UODO, due to the quality of the replayed recording, it is not possible to determine what the formulation "(...)" in the operator's statement refers to, in particular, whether it is information about previous (...) of the Complainant, or whether its meaning is, for example, to provide the reporting party with guidance to inform the Police about any (...) or whether it constitutes information about a connection with the organizational unit of the Police responsible for the matter (...). The middle part of this statement, which may contain the context of the formulation "(...)", is indeed unintelligible, as evidenced by the content of the official note from July 3, 2024, prepared after viewing the recording of the Commander's conference (page 61 verte of the case file) and the screenshot attached to this note (page 67 of the case file) with the transcription of the statement displayed during the conference. Therefore, it cannot be concluded that information about (...) of the Complainant was provided at the Commander's press conference. Thus, it cannot be stated that this process of personal data processing occurred, and therefore, in this regard, the current proceedings are moot and,

consequently, subject to dismissal based on Article 105 § 1 of the Administrative Procedure Code (Kpa). According to the aforementioned provision, when the proceedings have become moot in whole or in part for any reason, the public administration authority issues a decision to dismiss the proceedings accordingly in whole or in part. The wording of the cited regulation leaves no doubt that in the event of establishing the mootness of the proceedings, the authority conducting the proceedings is obliged to dismiss it. As indicated by the Provincial Administrative Court in Warsaw, quote: "mootness of administrative proceedings means the absence of an object of the proceedings. This object is a specific case in which the public administration authority is empowered and simultaneously obliged to resolve based on the provisions of substantive law regarding the rights or obligations of an individual entity" (judgment of October 5, 2017, case reference VI SA/Wa 1093/17). The establishment by the public administration authority of the existence of the premise referred to in Article 105 § 1 of the Kpa obliges it, as emphasized in doctrine and case law, to dismiss the proceedings, as there are no grounds for resolving the matter on the merits, and further conducting the proceedings in such a case would indicate its defectiveness, which would have a significant impact on the outcome of the case.

85. In this case, sharing the position expressed in the aforementioned court judgment, it should be stated that the premise of mootness of the proceedings and dismissal of the proceedings – based on Article 105 § 1 of the Kpa – exists in the scope covering the provision of information about (...) of the Complainant at the Commander's press conference. The conducted proceedings did not demonstrate that the data processing process contested by the Complainant occurred in this regard, thus there is no subject matter of the proceedings in this respect. In this factual and legal situation, the President of the UODO has resolved as stated in the operative part of this administrative decision.

Print article

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